

Anvaar Saifi Alias Anwar v. State of U.P. and Others

Allahabad High Court · Division Bench · 22 April 2019 · Writ - C No. 13875 of 2019 · **Writ disposed; bill dispute relegated to clause 6.5; restoration on deposit.**

HEADNOTE

A consumer disputing an electricity bill must proceed under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of on that footing. On the petitioner's offer to deposit the disputed amount, the Court observed that the licensee would restore supply immediately, and that any clause 6.5 objection could still be decided notwithstanding the payment.

FACTUAL SUMMARY

Anvaar Saifi alias Anwar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and distribution-licensee officers. He was disputing an electricity bill and had submitted a representation dated 21 December 2018. He sought a direction that the representation be decided and that his electricity connection be restored. Counsel for the petitioner, the Standing Counsel, and counsel for the licensee were heard. At the hearing the petitioner's counsel offered to deposit the disputed bill amount if supply were restored.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — proper remedy

HOLDING

Where a consumer disputes an electricity bill, the proper remedy is under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer deposits the disputed amount, the licensee is to restore supply immediately, and any objection raised under paragraph 6.5 may still be decided notwithstanding that payment. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing an electricity bill must proceed under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of on that footing.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Left to be decided under paragraph 6.5 of the Supply Code notwithstanding any deposit of the disputed amount. ¶ 1